

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 13, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Scott Roybal, Tom Segrave and Jeff White. Absent: Dr. Mark Rinne. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on February 27, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 3.47 acres of land located at 908 Southwest Drive, Laramie County, Wyoming (located west of Southwest Drive, south of I-80). The purpose of the hearing having been met, Mayor Collins closed the hearing. Comment was made by the following member of the governing body: Dr. Aldrich.

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agriculture and Rural Residential to NR-3 Neighborhood Residential-High Density for land located southwest of the intersection of Ridge Road and Holland Court (Postponed from February 27, 2023). Reporting for Public Services Committee, Mr. Cook advised there was no recommendation from the committee. Mr. Cook moved to approve on third and final reading, seconded by Mr. Roybal. Mr. Cook moved to amend by changing the County A-1 Agricultural and Rural Residential zoning classification to MR Medium Density Residential, seconded by Dr. Aldrich. Motion to amend failed. Voting “yes” – Dr. Aldrich, Mr. Cook, Mr. Laybourn and Mr. White. Voting “no” – Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Roybal and Mr. Segrave. Main motion failed (super majority required). Voting “yes” – Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Roybal, Mr. Segrave and Mr. White. Voting “no” – Dr. Aldrich and Mr. Laybourn. Public comment was made by: Renee Fowler, Sam Weinstein, Vice President, Southeast Wyoming Builders Association, Jason Stephen, Bedrock Development, Roger Alexander, Amber Raegan, Steve Asky, JJ Chen, Wendy Volk, Jon Cecil, Elizabeth Stapel, Dale Steenbergen, CEO/President, Greater Cheyenne Chamber of Commerce, Patrick Rudd, Peggy Escamilla, Rebecca Murchie, Michael White, John Fender, President, Southeast Wyoming Builders Association, Janette Wallace, Bedrock Development, Mike Sutton, Tasha Coryell, Min Ho, Jennifer Barley, CRMC, Rod Stone, Max Minnick, Pine

Rock Realty, Sharon Tuggle and Ryan Whitehead. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Mr. Roybal, Mr. Segrave and Mr. White.

ORDINANCE – 3rd READING – Amending Section 1.3 of the Unified Development Code (UDC), amending the enforcement regulations of the UDC and making other conforming amendments. Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Mr. Cook moved to amend by substitute dated March 6, 2023, seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. Comment was made by the following member of the governing body: Mr. Laybourn. (#4493)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business and CB Community Business to CB Community Business for land located between Old Happy Jack Road and Lincolnway, west of Missile Drive. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4494)

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, tracts of land situated in portions of Sunny Side Addition and Sunnyside Addition Second Filing, Section 12, T. 13 N., R. 67 W., 6th P.M., Laramie County Wyoming, generally located east of Ridge Rd. between Charles St. and Pershing Blvd., west of Wills Rd. between Cheyenne St. and Pershing Blvd., and northeast of the intersection of Pershing Blvd. and Wills Rd. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Comment was made by the following member of the governing body: Mayor Collins.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the Zoning Classification from County MU Mixed Use to MUB Mixed-Use Business Emphasis and CB Community Business for tracts of land situated in portions of Sunny Side Addition and Sunnyside Addition Second Filing, Section 12, T. 13 N., R. 67 W., 6th P.M., Laramie County, Wyoming, generally located east of Ridge Rd. between Charles St. and Pershing Blvd., west of Wills Rd. between Cheyenne St. and Pershing Blvd., and northeast of the intersection of Pershing Blvd. and Wills Rd. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. Comment was made by the following member of the governing body: Mayor Collins.

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, land located west of Southwest Drive south of I-80 – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LR Low-Density Residential to LR Low-Density Residential for land located west of Southwest Drive south of I-80 – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Repealing and recreating code provisions prohibiting drug paraphernalia as specified, and amending Section 9.20.020, Narcotics and Drugs, of Chapter 9.20, Controlled Substances, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate municipal prohibitions governing marijuana – referred to Committee of the Whole. (Sponsors – Mr. Johnson and Mr. Roybal)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Dell Range Addition, Sixth Filing, a replat of a portion of Tract 25, Dell Range Addition, City of Cheyenne, Laramie County, Wyoming (located southwest of the intersection of Ridge Road and Holland Court) (postponed from February 27, 2023). Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Public comment was made by: Brad Emmons, AVI, agent for the applicant. (#6311)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts pursuant to W.S. § 16-4-502 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Expressing the will of the Governing Body to prioritize and adequately fund specified downtown 6th Penny Tax Maintenance and Improvement Projects – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor to enter into a Memorandum of Understanding with Laramie County, Albany County, and the City of Laramie allocating Impact Assistance Funds resulting from an application to construct and operate a mine filed by the Gold King Corp. before the Industrial Siting Division – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] 2023-2025 Collective Labor Agreement between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters. Motion (per Consent Agenda) carried. (#7701)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Board of Public Utilities and McGee, Hearne & Paiz, LLP to provide financial and compliance auditing services for the fiscal years ending June 30, 2023 and 2024 (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$180,850.00). (#7702)

Memorandum of Understanding between the City of Cheyenne and Granite Peak Development, LP, Clear Creek Land Company, LLC, Laramie Land Holdings, LLC, Cheyenne Logistics Hub, LLC, and Swan Ranch LLC to memorialize the payment of past fees by the parties and to restate prior Development Agreements. Mr. Cook moved to approve, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated March 6, 2023, seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson. (#7703)

Memorandum of Agreement between the City of Cheyenne and the Downtown Development Authority (DDA) to provide professional and administrative services. Reporting for Finance Committee, Mr. White advised the item was reviewed under other items for the agenda at the March 6, 2023 Finance Committee meeting, therefore, provisions of Title 2 of City Code had been met. Mr. White moved to approve, seconded by Mr. Roybal. Mr. White moved to amend by substitute dated March 9, 2023, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. Public comment was made by: Wendy Volk. Comment was made by the following member of the governing body: Mr. Laybourn. [Clerk’s note: substitute is dated March 8, 2023] (#7704)

[CA] Sponsorship Agreement between the City of Cheyenne and HollyFrontier Cheyenne Renewable Diesel Company, LLC to designate HollyFrontier as the presenting sponsor of 2023 Superday, Superday Tour de Prairie and the Superday 5K walk/run (Revenue to the City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Umpires Association for the 2023 and 2024 Softball seasons (Recreation Programs Fund) – referred to Finance Committee.

[CA] Right-of-Way License Agreement between the City of Cheyenne and Bent 15, LLC for a portion of Lots 12, 13, 14, 15, 16, 17 and 18, Block 413, Original City of Cheyenne, Laramie County, Wyoming, known at 1509 Bent Avenue – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and TDSi - The Design Studio, inc., for the Gymnastics Facility Site Development, Engineering and Architectural Plans Project (Recreation Programs Fund) – referred to Finance Committee.

[CA] Easement Agreement between the City of Cheyenne and Visionary Communications LLC for constructing, reconstructing, maintaining, operating, repairing, inspecting, surveying, altering, abandoning, replacing and/or removing fiber optic cable and related material at 514 West Fox Farm Road (Revenue to the City) – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and Meals on Wheels of Cheyenne, Inc. for a portion of the property located at 2015 S. Greeley Hwy (General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-15-23 for an Agreement between the City of Cheyenne and Inman Roofing, Inc., for the Sanitation Transfer Station Reroof Project (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$373,730.00). (#7705)

[CA] Consideration to purchase two (2) used SUV’s for the City of Cheyenne, Compliance Department (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$70,000.00).

[CA] Consideration of Bid #E-13-23 for ten (10) portable litter fences for the City of Cheyenne Landfill. (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-15-23 for 95 gallon and 65 gallon automated refuse carts for the City of Cheyenne Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Front Range Fire Apparatus for the purchase of one (1) BME Fire Trucks, LLC, BME Freightliner Model 34 Targhee Type 3, 4x4 Fire Engine (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

Renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk's Office. Mr. White moved to approve, seconded by Mr. Roybal. Mr. White moved to divide the question to consider renewal applications for Poor Richard's and the Dog Haus separately, seconded by Mr. Johnson. Motion to divide the question carried. Voting "yes" – all members of the governing body present. Mr. White moved to approve the renewal retail liquor license for Poor Richard's and the renewal bar & grill liquor license for Dog Haus. Motion died due to lack of a second. Main motion carried. Voting "yes" – all members of the governing body present. Comments were made by the following members of the governing body: Mayor Collins and Mr. White.

Appointments of Danica Mrozinsky, Amber Nuse and Jamie Winters to the Downtown Development Authority Board. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointments).

No comments were made on the Voucher Report as presented.

Under other business:

Mr. Johnson, having voted on the prevailing side and pursuant to City Code Chapter 2.04, moved to reconsider the vote taken at the February 27, 2023 City Council meeting for the Donation Agreement with Union Pacific Railroad Company to accept a donation of selected fleet railroad cars, seconded by Mr. Roybal. Motion to reconsider carried. Voting "yes" – all members of the governing body present. Mr. Johnson moved to amend by substitute dated March 9, 2023, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting "yes" – all members of the governing body present with the exception of Dr. Aldrich and Mr. Laybourn voting "no". Main motion as amended by substitute carried. Voting "yes" – all members of the governing body present with the exception of Dr. Aldrich, Mr. Cook and Mr. Laybourn voting "no". Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel and Mr. Laybourn. (#7694)

Mr. White, having voted on the prevailing side and pursuant to City Code Chapter 2.04, moved to reconsider the vote taken at the February 27, 2023 City Council meeting for the Resolution authorizing PaydHealth, LLC, to provide advocacy and financial case management services for eligible specialty prescription drugs through alternative funding programs effective July 1, 2023, seconded by Mr. Segrave. Mr. Johnson declared a conflict of interest and vacated council chambers. Motion to reconsider carried. Voting "yes" – all members of the governing

body present in council chambers. Mr. White moved to postpone to March 27, 2023, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members present in council chambers.

Public comment was by the following individuals under other business: Jim Ridgeway, Emily Intlekofer, Black Dog Animal Rescue, Nick Lumberaz, Patrick Rudd, Amanda Ellis, Diamond in the Rough Pet Recovery, Shawn Giffin-Dean, Wendy Volk, Tony Brannon, Chelsea Fletcher, Maddi Haak, Black Dog Animal Rescue, Amy Buxton, Wayne Lilly, Joan Franklin, Serena Smith, Joe McCord, Linda Burt, Bethany Jacobs, Jason Dean, Gail Young, Alyssa Brown, Michael White, Dr. Tessa Winsch, Cheyenne Animal Shelter, Rick Redella,, Britney Tennant, CEO, Cheyenne Animal Shelter, Suzanne Jones and Richard Lysle.

The following members of the governing body made comments under other business: Dr. Aldrich, Mayor Collins, Mr. Esquibel, and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:58 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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